



St. Vrain Valley
Community Watchdogs
neighbors united for clean air

P O Box 82/Hygiene/CO 80533-0082
online at www.stvrainwatchdogs.org

September 5, 2002

Ms. Erica S. Crosby
Environmental Protection Specialist
Division of Minerals and Geology
Department of Natural Resources
1313 Sherman Street, Room 215
Denver, Colorado 80203

Permit #: M-1977-208 Confidential?: N
Class: General Documents Type-Seq.: _____
From: St. Vrain Valley Com. Watchdogs DMG
Doc. Name: Citizen Complaint Letter; Follow up of CKD
Doc. Date (if no date stamp): 9-13-02

RECEIVED
SEP 13 2002
Division of Minerals and Geology

Dear Ms. Crosby,

Thank you for your email regarding the inspection that you are conducting at Cemex-Lyons.

Here is our latest update. There have been at least 10 recent reports filed with the Boulder County Health Department from citizens in this community who have witnessed fugitive dust emissions originating at Cemex-Lyons. (Ten reported incidents may be a conservative figure as many residents work during the hours of operation at the plant and some dust events may go unreported.) I would emphasize that the County and State regulatory agencies would not even be aware of these incidents if it were not for the conscientious efforts of people in the community who take the time to report the incidents they see to the Boulder County Health Department. We are chagrined and puzzled about why citizens have to continue functioning in this watchdog role here. Something is wrong with this process as the official regulators are 10 to 50 miles away, and would never know that these incidents ever occurred.

For decades, Cemex-Lyons has been unable to contain its airborne assault of toxic substances that have blown into our homes, interjecting fear, anxiety, and disease into our lives. *This is completely intolerable. Each person in this community has the right to enjoy a healthy and a safe environment.* This is an agricultural community, and people came to live here because of the peace, quiet, the natural beauty here; (and the fresh air that the St. Vrain Valley should offer.) We are fearful because we know the content of this industrial white dust that settles in our gardens, our homes, pitting the windshield of our automobiles. We can only surmise what it is doing to our lungs. It seems dangerous that the local regulatory agencies have not yet adopted effective provisions to correct the slovenly management practices at Cemex-Lyons. The fact that the company has improved is not safe enough. OSHA protects the employees at the plant, but we citizens living on the windward side and our children attending the Hygiene school are helpless victims until an astute regulatory agency decides that enough is enough and comes to our assistance. We are resting our hope in you.

"Protect what's closest to your heart; your family, friends and your lungs."

Your last inspection report and the stipulations that you established for controlling CKD should have been sufficient to bring the company into compliance with proper management practices. That has not been the case. Did you know that 18 months after your inspection report, Joni Rix from the Boulder County Health Department conducted an inspection. The following is a quote from page 42 of Ms. Rix's report:

Item 19: Good Operating Practices: "Although this source has taken many positive steps to control fugitive emissions from the plant and have worked hard with the North Boulder Environmental Health Community Task Force, there is still room for improvement. At the time of inspection, roads were adequately watered, however, under parts of the kiln and cooler, piles of cement dust could be seen. This area is swept/shoveled by hand since the sweeper can not get under the equipment. There areas should be cleaned more frequently since it is source of fugitive dust when it gets windy."

It is frequently very windy in this valley, and the company takes refuge behind the ancient 30mph wind regulation established by the Air Quality Control Commission more than 25 years ago. In a letter to the Watchdogs on February 10, 2000, Ms. Margie Perkins, Director of the CDPHE, states that "The Commission has attempted to provide a reasonable approach in the application of its fugitive dust regulations when events are beyond the control of facility operators such as might be the case on very windy days. Even so, operators are required to continue to implement fugitive dust control measures during these high wind events. This can be viewed as a 'safeguard' built into the regulation and we believe it will prevent abuse of the 30mph provision." The Watchdogs can appreciate this provision when it is conscientiously followed by plant operators, but we feel that "piles of cement dust under parts of the kiln and cooler" constitutes an abuse of this regulation, and yet another abuse to the residents in the community.

The St. Vrain Valley Watchdogs remember that up until 1998, when we first organized, the company was dumping its CKD in piles in an open field just a few hundred feet from Hygiene Road. Windy conditions caused almost daily occurrences of CKD dust storms. We remember that residents kept the windows closed year round, and we still had layers of white dust inside and out. We were elated when Mr. Jorgenson from the CDPHE directed the company to cover the CKD with shale after it was dumped so that it would not go airborne. ~~True to form, 45 days passed before the first load of top coating for the CKD arrived.~~

44 months have passed since the DMG attempted to get Cemex's CKD problem resolved, and it still isn't under control. Recently the sprinkler system at the CKD disposal site was broken for weeks because the company didn't keep spare parts on hand.

On April 5, 1999, Mr. David Quimette, and Ms. Margie Perkins submitted a memo to Ms. Jane Norton advising her of the regulatory agency's activities to control fugitive CKD dust from the disposal area at Cemex-Lyons. The memo concludes with the assurance that the combination of activities should significantly reduce blowing dust from the disposal site. But, the recent photos submitted to the DMG and the CDPHE clearly depict that dust plums from the disposal site continue.

We very much appreciate your efforts, and feel you are in the position to protect the citizens here. Given the long history of this company's careless abuse of our environment and our very lives, we are very hopeful that the DMG will design the most stringent controls for CKD. The quality of life of the citizens here has been compromised for far too long. It is for these reasons that:

The Watchdogs respectfully request that the DMG apply tailored RCRA Subtitle C standards to improperly managed CKD at this facility as specified in the 1999 EPA Standards for the Management of Cement Kiln Dust.

Should you wish to discuss any aspect of your report with me, my phone number is 303 772-4267. Otherwise, I will look forward to receiving a copy of your inspection report.

Sincerely,

Richard E. Cargill

Richard E. Cargill
Executive Director

St. Vrain Valley Community Watchdogs

Cc: ✓ Mr. Bruce H. Humphries, Supervisor, Minerals Program, DMG
Mr. Carl C. Mount, Senior Environmental Protection Specialist, DMG
Mr. Chuck Stout, Executive Director, BCHD
Mr. Jeff Zayach and Ms. P. Milmoie, BCHD
✓ Ms. Jane Norton, Executive Director, CDPHE
✓ Ms. Margie Perkins, Division Director, Air Pollution Control Division, CDPHE
Mr. David Quimette, Manager, Stationary Sources Program, CDPHE
Mr. Carl Jorgenson, APCD, CDPHE
✓ Governor Bill Owens
Senator Ben Nighthorse Campbell
Representative Mark Udall
✓ Representative Todd Saliman, District 11
✓ Boulder County Commissioners, Jana Mendez, Paul Danish, Ron Stewart
Mr. G. Billingsley, Director, Boulder County Land Use Department
✓ Mr. William Yellowtail, Regional Administrator, USEPA
✓ Mr. Richard Long, Director, Air and Radiation Program, USEPA, Region 8
Pollution Prevention Advisory Board
✓ Mr. Kirk Cunningham, Sierra Club, Boulder County
Mr. Nicholas G. Aumen, Vice-President, Sierra Club
American Lung Association
Mr. Doug Lempke, Administrator, Colorado Air Quality Control Commission
EPA - Washington, D.C., Docket RCRA - 1999-0011
Press

- Ron C
- Greg W } cc of this letter